

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND THE
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
YUBA COUNTY OFFICE OF EDUCATION
STATE OF CALIFORNIA**

In the Matter of the Proceeding to Dismiss:

**ANGELA BRACCO, a Permanent Certificated Employee,
Respondent**

OAH No. 2025010718

DECISION

On June 2 through 6, 2025, a Commission on Professional Competence (Commission) heard this matter by videoconference from Sacramento, California. The Commission comprised Kathryn Birch, Carrie Jackson, Ed.D., and Administrative Law Judge Patrice De Guzman Huber.

Lindsay K. Moore, Esq., and Amanda N. A. Bray, Esq., represented the Yuba County Office of Education (YCOE).

Matthew R. Chevedden, Esq., represented respondent Angela Bracco, who appeared.

Evidence was received on June 2 through 6, 2025. The record was held open for the submission of written arguments. The parties filed their written arguments on

August 8, 2025. The record was closed and the matter submitted for decision on August 8, 2025. The panel deliberated on August 18, 2025.

FACTUAL FINDINGS

Jurisdiction and Background

1. Respondent is a permanent certificated employee of YCOE. She has a Single Subject Teaching Credential and is assigned to teach at Harry P. B. Carden Court School (Carden). Carden is a school inside Juvenile Hall. It is a secure facility. Juvenile Correctional Officers (JCOs) patrol the school's premises to ensure safety and security, and at least one JCO is assigned to each classroom when class is in session.

2. On October 8, 2024, Mary Pa Hang, Executive Director of Human Resources for YCOE, signed and filed with the Superintendent of YCOE a Statement of Charges (SOC) against respondent. The SOC stated the following grounds for dismissal: (1) immoral conduct, including but not limited to egregious conduct; (2) dishonesty; (3) evident unfitness for service; and (4) persistent violation of or refusal to obey school laws or regulations. (Ed. Code, § 44932, subds. (a)(1), (4), (6), & (8).)

3. Respondent timely filed a Notice of Defense and requested a hearing. The matter was set for an evidentiary hearing before a Commission on Professional Competence pursuant to Education Code section 44944 and Government Code section 11500 et seq.

Allegations, Evidence at Hearing, and Credibility Findings

4. This Decision will follow the format of the SOC. For each of the allegations, the Decision will identify the supporting evidence, if any, followed by

respondent's admission, denial, or explanation. To the extent the allegations warrant credibility determinations, those findings will follow. Finally, the significance of respondent's conduct that is proved will be discussed in a separate section analyzing the factors outlined in *Morrison v. State Board of Education* (1969) 1 Cal.3d 214 (*Morrison*).

ALLEGED PREVIOUS MISCONDUCT SUPPORTING TERMINATION

5. Under the section titled "Previous Misconduct Supporting Termination," the SOC alleges the following:

- during the 2021-2022 school year, respondent engaged in "Unsafe Behavior" with respect to a hole punch, a "Dangerous Item";
- during the 2021-2022 school year, respondent engaged in "Disrespectful and Insubordinate Behavior" with Steven Rebozzi, Principal;
- during the 2022-2023 school year, respondent "failed to respect [the] authority" of Sherry Fortner, Principal, during a "heated discussion";
- during the 2022-2023 school year, respondent "openly made [negative] comments" about Ms. Fortner; and
- during the 2022-2023 school year, respondent engaged in disrespectful and insubordinate behavior by making certain comments about colleagues.

As discussed further below, the evidence established that respondent: (1) misplaced a hole punch, a potentially dangerous item, and immediately reported it to the classroom JCO; (2) engaged in disrespectful behavior toward Mr. Rebozzi on

August 11 and 12, 2021; and (3) engaged in disrespectful behavior toward Ms. Fortner by making the comment that Ms. Fortner "is an idiot."

Hole Punch Incident

6. The SOC alleges that during the 2021-2022 school year, on or about August 19, 2021, respondent misplaced a hole punch issued specifically for Carden's Positive Behavior Intervention and Supports (PBIS) program. Under PBIS, teachers and other staff use a hole punch to mark students' punch cards when they exhibit good behavior. When respondent learned her PBIS hole punch was missing, she reported it as such.

The SOC alleges that because a hole punch "can be utilized as a weapon by students and poses a safety risk," Juvenile Hall staff searched students and reviewed surveillance footage. The SOC further alleges that three hours after reporting the hole punch missing, respondent dishonestly reported to Juvenile Hall staff that she had located the missing hole punch. The SOC alleges the missing hole punch was later located inside a hole in a classroom bathroom.

7. Jorge Valdespino, Supervising JCO (SJCO), testified at hearing. SJCO Valdespino was assigned as the night shift supervisor at Juvenile Hall on August 19, 2021. When he reported for duty that night, JCO Curtis Dorsey informed him that respondent had misplaced a hole punch and later reported she had located it. However, JCO Dorsey told SJCO Valdespino that he did not believe respondent because the "found" hole punch had rubber grips of a different color from the hole punch respondent originally had. JCO Dorsey did not testify.

8. SJCO Valdespino decided to conduct his own search "to validate that [respondent] did [] present the real [missing] puncher." He targeted his search to a

hole in a classroom bathroom because “over the years, if kids had stuff on them, it would [] make its way there.” He crouched under the bathroom sink, shone his cellphone flashlight into the hole, and used a magnet on a string to retrieve a hole punch. At hearing, SJCO Valdespino did not describe the hole punch, the color of its handles, or the shape of the punch. He testified that he believes a missing hole punch is a safety risk because “it could be used as a weapon. It’s a metal object, so it can be filed down.”

9. Krystal Cano, a school secretary, testified. During the 2021-2022 school year, she was the secretary at Carden and in charge of keeping track of the PBIS hole punches. The hole punch handles varied: some had pink rubber grips, some had blue rubber grips, and some had no rubber grips. The shape of the punch was a star. Ms. Cano gave respondent and another Carden teacher, Dan McAllister, “a brand-new puncher” each. She did not track what kind of grips were on the hole punches she distributed. She does not recall an incident during which respondent misplaced a hole punch.

10. At hearing, respondent explained she was unable to locate her pink-gripped hole punch at some point before her class ended. She immediately informed JCO Dorsey, the JCO assigned to the classroom, because the JCO decides whether to search the classroom and hold the students inside until the search is complete. Respondent assumed JCO Dorsey would conduct a search.

11. During a recess or lunch break, she left the classroom and went to the portable, a trailer that housed the administrative office and teacher desks. Respondent retrieved another hole punch, with blue grips, to take back to the classroom. At hearing, she explained she did so “so that [she] could keep giving [her] PBIS punches” to students. When respondent returned to the classroom, she showed JCO Dorsey the

blue-gripped hole punch. She explained at hearing, "In my mind, I'm thinking, '[JCO Dorsey] is already looking for the [pink-gripped] hole punch. I've already reported that they're looking for that. I have to come in with another hole punch because I need to' because that's part of my PBIS program[.]"

12. The evidence establishes that respondent misplaced the hole punch, which was potentially dangerous because of its risk of being used as a weapon. However, the evidence does not establish that the hole punch located by SJCO Valdespino inside a hole where students routinely hid items was respondent's pink-gripped hole punch. Additionally, the evidence also does not demonstrate that respondent was dishonest. Because JCO Dorsey did not testify, there is no direct evidence of the allegedly dishonest statement respondent made to him with respect to the blue-gripped hole punch. Without evidence of the statement itself, the truth or falsity of such a statement cannot be determined.

Behavior Toward Mr. Rebozzi

13. The SOC alleges that during the 2021-2022 school year, respondent engaged in "Disrespectful and Insubordinate Behavior" toward then-principal, Mr. Rebozzi. Specifically, on or about August 11, 2021, respondent spoke to Mr. Rebozzi, "in a disrespectful and confrontational manner" during a staff meeting, and Mr. Rebozzi "ended the meeting as a result of [respondent's] disruptive behavior." In a private meeting between Mr. Rebozzi and respondent, she "continued in a disrespectful manner and became very argumentative." The SOC further alleges that the following day, respondent "had another outburst" with Mr. Rebozzi.

14. Mr. Rebozzi testified. He described his interaction with respondent during a staff meeting on August 11, 2021. At the meeting, respondent expressed

"some concerns" and was "very loud" and "confrontational." Mr. Rebozzi pulled respondent aside to have a one-on-one conversation. The following day, respondent voiced other concerns. She was "angry" and "argumentative." Mr. Rebozzi again had a one-on-one conversation with respondent to address her concerns and remind her to model Carden's values of "being positive, respectful, having integrity, and being dependable and empowered." He recalled writing an email memorializing these two conversations with respondent. At hearing, respondent acknowledged receiving Mr. Rebozzi's email.

15. Mr. Rebozzi testified that respondent was "very sincere" in accepting feedback. She was open to his criticism and corrected her behavior after their conversations. Because of their yearslong professional relationship as colleagues, Mr. Rebozzi believed he and respondent "had some mutual respect for each other." He further described respondent as follows:

[S]he was always very open to, you know, those conversations. She has a really good heart, and she – you know, I think she cares about her coworkers and she cares about kids. And so I always felt like those were helpful conversations that we had.

16. Mr. Rebozzi testified credibly. Respondent did not dispute his description of their interactions on August 11 and 12, 2021. The evidence establishes that on those dates, respondent engaged in disrespectful behavior toward Mr. Rebozzi. However, the evidence does not establish that she was insubordinate. (See *Bd. of Education of City of Los Angeles v. Swan* (1953) 41 Cal.2d 546, 552 [refusal to accept assignments or a supervisor's instruction constitutes disobedience or insubordination].) To the contrary, respondent was open and receptive to feedback and made improvements.

Behavior Toward Ms. Fortner

17. The SOC alleges that during the 2022-2023 school year, respondent “failed to respect authority” during a “heated discussion” with Ms. Fortner. The SOC further alleges that during this discussion, Serena Vazquez, a substitute paraeducator at the time, “had to step in to diffuse [*sic*]” the situation, which was “bordering on confrontational.” These allegations also appear in a Letter of Reprimand (LOR) Ms. Hang provided to respondent in August 2023.

18. Ms. Hang testified that Mr. McAllister and another Carden teacher, Cherette MacGregor, told her that Ms. Vazquez “had to step in” during a “heated discussion” between respondent and Ms. Fortner. Ms. MacGregor did not testify. Mr. McAllister, who testified, did not recall such an incident between Ms. Fortner and respondent. Ms. Fortner, who also testified, did not recall such an incident. Respondent denied such an incident occurring, in her testimony at hearing and her written response to the August 2023 LOR. She explained that describing her discussion with Ms. Fortner as requiring “somebody [to] step in” “sounds like [they were] about to physically fight each other.” Respondent denies any discussion ever reaching such a potentially physical level.

19. However, Ms. Vazquez recalled at hearing a particular disagreement between respondent and Ms. Fortner. According to Ms. Vazquez, Ms. Fortner said to respondent, “This is how things are going to be. I’m the boss.” Respondent explained her disagreement and pointed out the factors she believed Ms. Fortner failed to consider. According to Ms. Vazquez, respondent is generally a loud speaker. During this particular argument between Ms. Fortner and respondent, Ms. Fortner “was trying to raise her voice to be, like, heard over [respondent].” Ms. Vazquez felt she needed to “mediate” and facilitate further discussion between Ms. Fortner and respondent.

20. Notwithstanding the disagreement between Ms. Fortner and respondent, there is no evidence that Ms. Fortner gave respondent an instruction after she asserted, "This is how things are going to be. I'm the boss." Consequently, there is no evidence that respondent refused to obey her superior's instruction. (See *Bd. of Education of City of Los Angeles v. Swan, supra*, 41 Cal.2d at p. 552.) The evidence established does not demonstrate a "failure to respect authority."

Comments About Ms. Fortner

21. The SOC alleges that during the 2022-2023 school year, respondent engaged in "disrespectful and insubordinate behavior" by "openly ma[king] comments to co-workers" regarding Ms. Fortner. The SOC further provides examples of comments she allegedly made: "[Ms. Fortner] doesn't know what she's doing. She is a liar. She is an idiot. [You] cannot trust [her]." These allegations also appear in the August 2023 LOR. Each alleged statement is addressed below.

22. Ms. Hang, who conducted the investigation underlying the SOC and who authored the SOC, testified that she believes respondent made the above comments about Ms. Fortner to Mr. McAllister and Ms. MacGregor. Ms. Hang did not state at hearing whether she knew the context of these comments. Ms. MacGregor did not testify.

23. Mr. McAllister testified he does not recall respondent making the comments, "[Ms. Fortner] doesn't know what she's doing. She is a liar." He generally remembers the comments, "[Ms. Fortner] is an idiot. [You] cannot trust [her]." Mr. McAllister testified these comments "would have been [made]" during a staff meeting, but not directly at Ms. Fortner. He was unable to recall the specific context during which respondent allegedly made these comments.

24. In her written response to the August 2023 LOR, respondent denied making the comments that Ms. Fortner “doesn’t know what she’s doing,” “is a liar,” or “cannot be trusted.” Her testimony was consistent with her written response.

25. At hearing, respondent admitted that she made the comment to a colleague that Ms. Fortner “is an idiot.” She explained she said this when Ms. Fortner proposed changes to Carden’s Career and Technical Education (CTE) program, which was headed by Mr. McAllister. At the time, Ms. Fortner was new to working at a Juvenile Hall school, and her proposed changes did not take into consideration respondent and Mr. McAllister’s experience teaching in such a setting. Respondent believed at the time that Ms. Fortner was being “an idiot” for failing to take into account the input of other teachers.

26. Respondent’s testimony was credible, as it was consistent with her previous written statement and particularly in light of her negative self-report in admitting she called Ms. Fortner “an idiot.” Mr. McAllister’s testimony also confirms that respondent made the comment that Ms. Fortner is “an idiot.” The evidence establishes that respondent engaged in disrespectful behavior toward Ms. Fortner, in light of this comment. However, such a comment does not establish insubordination as there is no evidence that Ms. Fortner gave respondent an instruction that she refused to obey. (See *Bd. of Education of City of Los Angeles v. Swan, supra*, 41 Cal.2d at p. 552.)

Comments About Other Colleagues

27. The SOC alleges that during the 2022-2023 school year, respondent “exhibited [] disrespectful and insubordinate behavior” by making the following comments: (1) criticism of Ms. Vazquez’s work and a suggestion that Ms. Vazquez

dressed inappropriately for work; (2) "I can't stand working with her," referring to an unidentified teacher; (3) a suggestion that respondent is "the only teacher" at Carden; and (4) referring to a request by Ms. Fortner as "sanctimonious bullshit." These allegations also appear in the August 2023 LOR.

28. At hearing, Ms. Hang did not say which employee told her respondent criticized Ms. Vazquez's work. Mr. McAllister did not testify as to whether he heard respondent criticize Ms. Vazquez's work. At hearing, respondent denied criticizing the quality of Ms. Vazquez's work. The evidence does not establish that respondent made such a criticism.

29. According to Ms. Hang, Mr. McAllister, Ms. MacGregor, and another teacher, Patricia Pinedo, heard respondent suggest that Ms. Vazquez dressed inappropriately for work. Ms. MacGregor did not testify. At hearing, Mr. McAllister testified he heard respondent make comments about Ms. Vazquez's "dress and her hygiene." He recalled that respondent's concern was "that the students would criticize [Ms. Vazquez's] appearance and her hygiene and cause a distraction in the classroom." Ms. Pinedo testified but did not state whether she heard respondent make comments about Ms. Vazquez's outfit.

At hearing, respondent described an incident during which Ms. Vazquez was wearing an outfit that "generated a lot of conversation in the classroom among students." Respondent defended Ms. Vazquez to the students. She testified, "I told them I thought it was cool. I told them I would wear an outfit like that, and maybe I would tomorrow[.]" Respondent's testimony was consistent with Mr. McAllister's testimony. The evidence does not establish that respondent suggested that Ms. Vazquez dressed inappropriately for work.

30. According to Ms. Hang, Mr. McAllister heard respondent make the comment, "I can't stand working with her" about an unnamed colleague. At hearing, Mr. McAllister did not testify as to whether he heard this comment. Respondent also did not testify as to whether she made this comment. The evidence does not establish that respondent made such a comment.

31. According to Ms. Hang, Mr. McAllister heard respondent make the comment that she was "the only teacher" at Carden. Mr. McAllister testified he understood respondent's comment to mean that she was the only general education teacher at Carden. Mr. McAllister testified the comment hurt his feelings. At hearing, respondent denied suggesting that she was "the only teacher" at Carden. However, she explained that although Carden has other teachers, respondent is the only "teacher of record." Her written response to the August 2023 LOR was consistent. Respondent's contention about being the only teacher of record is undisputed.

Based on the evidence, it is more likely than not that respondent made a comment about being "the only teacher" at Carden, meaning that she was the only teacher of record. Nonetheless, Mr. McAllister's hurt feelings, on their own, are also insufficient to conclude that respondent's comment about being the only teacher of record was disrespectful. Such a comment, by itself, does not establish disrespectful or insubordinate behavior. (See *Bd. of Education of City of Los Angeles v. Swan, supra*, 41 Cal.2d at p. 552.)

32. According to Ms. Hang, Ms. MacGregor heard respondent call one of Ms. Fortner's requests "sanctimonious bullshit." Ms. MacGregor did not testify. Her statement to Ms. Hang does not fall under any hearsay exception. Furthermore, respondent denied making such a statement, in her written response to the August

2023 LOR and at hearing. The evidence does not establish that respondent called a request by Ms. Fortner “sanctimonious bullshit.”

ALLEGED MISCONDUCT SUPPORTING TERMINATION

33. Under the section titled “Misconduct Supporting Termination,” the SOC alleges that during the 2023-2024 school year, respondent:

- engaged in “Unsafe Behavior” with respect to a screwdriver, a “Dangerous Item”;
- failed to report sexually explicit writings by a student, in violation of the Prison Rape Elimination Act (PREA); and
- hid the sexually explicit writings by a student.

As discussed further below, the evidence establishes that respondent misplaced a screwdriver, a potentially dangerous item, immediately reported it missing to the classroom JCO, and immediately reported it as found once she located it.

Screwdriver Incident

34. The SOC alleges that on January 11, 2024, respondent brought a screwdriver into the classroom and subsequently misplaced it. Respondent reported it missing to the JCO assigned to the classroom. The SOC alleges the “screwdriver can be used as a weapon by a student – posing a danger to student and all staff present at Juvenile Hall.” Juvenile Hall staff searched the premises that day with no success. The following day, respondent located the screwdriver in a metal cabinet in the classroom, and she informed the classroom JCO. The SOC alleges that due to respondent’s

“repeated dangerous behavior and dishonesty,” Juvenile Hall revoked her access to the premises.

The SOC also alleges that respondent dishonestly claimed she found the screwdriver the same day she misplaced it. The SOC is silent as to when respondent made such a claim. However, at hearing, the timeframe was narrowed to during Ms. Hang’s investigation of respondent’s conduct, approximately in June 2024.

35. During the 2023-2024 school year, there had been an ongoing rodent problem at Carden. As part of the effort to address the problem, sticky traps were set out in certain places, including computer carts. A computer cart was a cabinet that housed computer gear such as Chromebooks. It is ordinarily screwed closed. There were sticky traps placed inside the computer carts because rodents would nest inside. Respondent was unhappy with the efforts undertaken by Carden and Juvenile Hall to address the rodent problem.

36. At some point, respondent learned that Juvenile Hall staff were the ones to replace the sticky traps. However, the computer carts were school property. So that the sticky traps could be replaced sooner than later, respondent decided to obtain a screwdriver for a SJCO to use to open the computer cart in her classroom and replace the traps.

37. Respondent borrowed a screwdriver from Mr. McAllister, who had access to tools as a CTE teacher. Mr. McAllister’s tools had been previously cleared by Juvenile Hall to be brought in for the CTE classes. Mr. McAllister testified he lent tools to other staff and did not keep a log of which tool was lent to which staff.

38. On January 10, 2024, respondent brought the screwdriver inside Juvenile Hall and into her classroom. She expected a SJCO would arrive to take the screwdriver

from her. At some point, she realized she could not locate the screwdriver. She immediately told the classroom JCO. Juvenile Hall conducted a search of the classroom and the students, without success. At hearing, Brent Hungrige, who served as the Probation Program Manager, also known as the Deputy Superintendent, for 23 years until his retirement in March 2025, testified. He stated Juvenile Hall conducts searches for missing items once or twice a month.

39. The following morning, on January 11, 2024, respondent returned to her classroom. A student suggested she search inside a locked metal cabinet for the screwdriver. Respondent located it in a pencil holder inside the metal cabinet. She immediately informed Cameron Phillips, the classroom JCO, and showed him the screwdriver.

40. A surveillance video depicts JCO Phillips allowing respondent to maintain possession and control of the screwdriver in a room full of students. Respondent used the screwdriver to tighten the screws on the computer cart so that students would not have access to loose screws which are potentially dangerous items. After tightening the screws, she gave the screwdriver to JCO Phillips. He testified that at some point after that, he gave the screwdriver to SJCO Valdespino.

41. James Moralez, Deputy Chief Probation Officer of the Yuba County Probation Department, testified. He made the ultimate decision to revoke respondent's access to Juvenile Hall. In making that decision, Mr. Moralez considered the hole punch incident and the screwdriver incident and concluded he could "not trust that [respondent's] judgment was going to be appropriate for the safety of the youth and the [] staff."

42. In approximately June 2024, Ms. Hang interviewed respondent. Ms. Hang testified that respondent lied about finding the screwdriver on the same date it had been misplaced. At hearing, respondent explained that because of the time that had passed since the incident, she could not remember during Ms. Hang's interview the exact date she found the screwdriver. During the interview, respondent asked Ms. Hang to "please [] go to the camera" to review the surveillance videos to make sure the dates were accurate.

43. The evidence establishes that on January 11, 2024, respondent brought a screwdriver into the classroom and misplaced it. The evidence also establishes a screwdriver is a potentially dangerous item as it can be used as a weapon. On January 12, 2024, she located the screwdriver and immediately informed JCO Phillips, who, after permitting respondent to use it, took possession of it. However, while the evidence also establishes that respondent's Juvenile Hall access was revoked, it was due to her misplacing potentially dangerous items, not her alleged dishonesty.

44. With respect to the SOC's allegation that respondent was dishonest, there is no direct evidence of the exact question Ms. Hang asked respondent, and there is no direct evidence of the allegedly dishonest answer respondent gave Ms. Hang. Without evidence of respondent's actual answer, the truth or falsity of such a statement cannot be determined. Moreover, respondent testified credibly that she could not recall the exact dates during the interview. Her plea to Ms. Hang to review the surveillance video to confirm the dates is consistent with her failing to remember specifics. The evidence does not establish that respondent was dishonest with Ms. Hang about the date she located the screwdriver.

Alleged Failure to Report Under PREA

45. The SOC alleges that two sexually explicit writings by students were found in respondent's belongings in the Carden portable. One writing stated (grammar in original): "today I woke up wanting to have sex soo[o] bad." The other writing, which appeared to be a poem, stated (grammar in original):

I like to see you naked

I gotta big stick

I wanna see you take it

The SOC further alleges that under PREA, respondent was "obligated to report this communication to her supervisor."

46. Ms. Hang testified that after respondent's access to Juvenile Hall premises was revoked, she went to the Carden portable and respondent's classroom to collect her belongings. Ken Hamel, YCOE's Director of Alternative Education, went with her. Mr. Hamel testified. He described how he located a folder containing a number of documents inside a drawer in the portable. Two particular writings caught his attention, which are the two described above. He gave the folder to Ms. Hang.

47. The writings appear to have been directed to respondent. During Ms. Hang's investigation of respondent's conduct, respondent said the writings were by a student, J.B., and meant for her (respondent). Ms. Hang believes that PREA requires respondent to report the writings to Juvenile Hall. The SOC that Ms. Hang authored cites Code of Federal Regulations, title 28, section 115.61, subsection (a), which states: "The agency shall require all staff to report immediately and according to

agency policy any knowledge, suspicion, or information regarding an incident of sexual abuse or sexual harassment that occurred in a facility”

48. Code of Federal Regulations, title 28, section 115.6, states in pertinent part (emphasis added):

Sexual abuse includes—

(1) Sexual abuse of . . . [a] resident by . . . [another] resident;
and

(2) Sexual abuse of . . . [a] resident by a staff member,
contractor, or volunteer.

[¶] . . . [¶]

Sexual harassment includes—

(1) Repeated and unwelcome sexual advances, requests for sexual favors, or verbal comments, gestures, or actions of a derogatory or offensive sexual nature by one . . . resident directed toward another; and

(2) Repeated verbal comments or gestures of a sexual nature to . . . [a] resident by a staff member, contractor, or volunteer, including demeaning references to gender, sexually suggestive or derogatory comments about body or clothing, or obscene language or gestures.

49. A “resident” is “any person confined or detained in a juvenile facility.” (28 C.F.R. 115.5.) Here, J.B., as a Carden student in Juvenile Hall, is a resident within the

meaning of PREA. Nevertheless, his writings do not meet the definition of either sexual abuse or sexual harassment. Based on the definitions, the individual PREA aims to protect is the resident, not the staff member. The target of J.B.'s writings was respondent, not another student. Complainant did not allege a provision under PREA that requires respondent to report sexual abuse or harassment when the target of that abuse or harassment is a staff member rather than a resident. Accordingly, complainant did not prove that respondent violated PREA.

Alleged Hiding of Sexually Explicit Writings

50. The SOC alleges that respondent "hid" the two student writings discussed above, which "goes to [her] tendency to be deceptive and dishonest."

51. When respondent received the writings, she immediately showed them to Mr. McAllister at the portable. At hearing, Mr. McAllister confirmed respondent showed him the writings because "she was concerned." Due to her concern, respondent brought them to the next multidisciplinary team (MDT) meeting which is usually attended by school administration and Probation. Respondent did not receive specific direction at the MDT meeting on what to do with the writings. She placed them inside a catch-all folder inside a catch-all drawer in the portable.

52. Bobbi Abold, YCOE's Deputy Superintendent, Mr. Hungrige, and Mr. Morales each testified they did not learn about the existence of the J.B.'s writings until after Mr. Hamel located them in respondent's belongings. They believe respondent did not report the writings to the principal, Juvenile Hall, or the Probation Department.

53. Placing the writings inside a folder, which was inside a drawer, does not constitute "hid[ing]" the writings, particularly in light of respondent immediately

showing them to Mr. McAllister and subsequently bringing them to an MDT meeting. The lack of knowledge of Ms. Abold, Mr. Hungrige, and Mr. Morales as to the writings does not necessarily lead to the conclusion that respondent "hid" the writings. The evidence does not establish that respondent "hid" them. The evidence also does not establish that, by placing them inside a folder in a drawer, she "tend[s] to be deceptive and dishonest."

Evidence of Respondent's Character and Teaching Ability

54. Complainant's witnesses Mr. Rebozzi, JCO Phillips, SJCO Valdespino, and Mr. Hungrige praised respondent's general attitude and teaching skill. They each had opportunity to observe her in the classroom. At hearing, Mr. Rebozzi described respondent as follows:

[As a teacher] I thought [respondent] was very compassionate. She went above and beyond to help support students. I thought she was someone that I could count on to help students who were having a crisis. I thought she was willing to learn. She challenged me a lot. So I respected that about her.

You know, she was definitely kid first. And any time she felt like I wasn't doing the right thing by kids, she would kind of check me, and we would have good conversations about that. She, in my opinion, was really instrumental in helping us put together support systems and – in the classroom to help support kids and build a program at our school that contributed to our success. . . .

[She was] really focused a lot on building positive relations with students and building trust with them. And [] she would always communicate with me about kids . . . I think she really did an excellent job of facilitating th[e] transition [of new students into Carden] and the buy-in. And she helped us become successful because of those things.

55. At hearing, JCO Phillips described respondent as follows:

[My interactions with respondent] were positive.

[¶] . . . [¶]

[Her interactions with other Probation staff] were positive as well. She was always good to work with.

[¶] . . . [¶]

[Her interactions with other teaching staff were] same – positive. Positive attitude, positive interaction.

56. At hearing, SJCO Valdespino described respondent as follows:

I thought she was a great teacher.

[¶] . . . [¶]

She was very engaged with the youth, provided a good curriculum for them. It wasn't just putting movies on [] the TV screen. She was very involved.

57. At hearing, Mr. Hungrige described respondent as follows:

Overall, I liked [respondent]. You know, she's pleasant, always seemed to have a very positive attitude, infectious smile. She was good with the kids. She always seemed to really make a connection. . . . I think that's half the battle with a lot of the youth that we're dealing with – is, you know, just being able to get them to pay attention and [] focus and [] engage in the educational process.

[¶] . . . [¶]

[Her interactions with other teachers] always seemed positive. I don't recall anything negative.

58. Respondent's witnesses Ms. Cano and Ms. Pinedo also described her positively. Because they were colleagues at Carden, Ms. Cano and Ms. Pinedo had many opportunities to observe respondent. At hearing, Ms. Cano described respondent as follows:

[Respondent is] very passionate. She's great with the kids. Very knowledgeable. She's very transparent with the kids. Like, [] she's honest, and the kids absolutely love her.

[¶] . . . [¶]

As a teacher, [respondent is] excellent. [I]t's one of those where she sets her boundaries with the kids, and she has their respect. She explains things to them when she teaches. She makes things applicable to their lives. There's a lot of talk about – "Okay, [] you don't want to do your work. Here.

Let's talk about the consequences of that. . . . " and explaining how things don't benefit them.

59. At hearing, Ms. Pinedo described respondent as follows:

I would describe her as a great, interactive teacher. She was always listening. She was always pushing students to do critical thinking, trying to challenge them as much as possible so that way they would really use those critical thinking skills in more productive ways. She was always interacting well with the students. She would have fun with them. . . . It was always about being successful and trying to establish a really good relationship so that they would want to work on the schoolwork that we would give them.

Analysis of *Morrison* Factors

60. As discussed above, the evidence establishes that respondent: (1) misplaced a hole punch, a potentially dangerous item, and immediately reported it to the classroom JCO; (2) engaged in disrespectful behavior toward Mr. Rebozzi on August 11 and 12, 2021; (3) engaged in disrespectful behavior toward Ms. Fortner by making the comment that Ms. Fortner "is an idiot"; and (4) misplaced a screwdriver, a potentially dangerous item, immediately reported it missing to the classroom JCO, and immediately reported it as found once she located it.

61. However, proving that respondent engaged in the aforementioned conduct does not end the inquiry. In *Morrison, supra*, the California Supreme Court concluded a teaching credential cannot be disciplined "unless that conduct indicates that the [educator] is unfit to teach." (*Morrison, supra*, 1 Cal.3d at p. 229.) In other

words, “[t]he evidence must not only be sufficient to support a finding that [respondent] engaged in misconduct, but also a finding that his misconduct met the criteria for unfitness for service as articulated in *Morrison*.” (*San Diego Unified School Dist. v. Com. on Professional Competence* (2013) 214 Cal.App.4th 1120, 1149.)

62. The *Morrison* Court outlined factors to consider when determining whether an educator’s conduct demonstrates unfitness to teach (*Morrison, supra*, 1 Cal.3d at p. 229;). The factors are: (1) the likelihood the conduct may have adversely affected students or fellow teachers; (2) the degree of such adversity anticipated; (3) the proximity or remoteness in time of the conduct; (4) the type of teaching certificate held by the teacher; (5) the extenuating or aggravating circumstances, if any, surrounding the conduct in question; (6) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (7) the likelihood of the recurrence of the conduct in question; and (8) the extent to which disciplinary action may inflict an adverse impact or have a chilling effect upon the constitutional rights of the teacher involved or other teachers. (*Id.* at pp. 229–230.) “Only the pertinent *Morrison* factors need to be analyzed.” (*Broney v. Cal. Com. on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 476.)

ADVERSE EFFECT

63. Respondent’s conduct had a potentially adverse effect on students because the hole punch and screwdriver she misplaced were potentially dangerous items that put at risk the safety of students and others at Carden. Additionally, students were adversely affected because they were subjected to search. However, their potential danger did not materialize because of respondent’s mitigating actions in immediately reporting them missing, allowing JCOs to act sooner than later.

64. Respondent's disrespectful behavior toward Mr. Rebozzi and Ms. Fortner also adversely affected them. However, there was no evidence of physical harm or any lasting emotional harm. At least in Mr. Rebozzi's case, he appeared able to have overcome the friction with respondent, and they thereafter enjoyed a mutually respectful professional relationship.

PROXIMITY IN TIME

65. Respondent misplaced the screwdriver only 22 months ago. Accordingly, it is proximate in time.

TYPE OF CREDENTIAL

66. Respondent has a Single Subject Teaching Credential, which allows her to teach grades 12 or below and including adults. "A teacher [. . .] in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the children coming under [her] care and protection." (*Bd. of Education of City of Los Angeles v. Swan, supra*, 41 Cal.2d at p. 552, quoting 66 Corpus Juris, p. 55, [overruled on other grounds by *Bekiaris v. Bd. of Education* (1972) 6 Cal.3d 575].) Respondent's credential allows her to educate students of all ages, including young children. By engaging in the proved conduct, respondent has not modeled for her students, both actual and potential, appropriate conduct in larger society.

AGGRAVATION AND MITIGATION

67. Insofar as respondent has engaged in disrespectful behavior toward two principals, she has demonstrated a pattern, which aggravates the impact of her misconduct. However, the passage of over two years between respondent misplacing a

hole punch and misplacing a screwdriver shows that misplacing items is not a constant, persistent pattern. Thus, misplacing two items is not considered aggravating here.

68. To respondent's credit, there is no evidence she again engaged in disrespectful behavior toward Mr. Rebozzi after their one-on-one conversations. He himself acknowledged respondent's openness to receive feedback and subsequent improvement. Similarly, there is no evidence that respondent made other disrespectful comments about Ms. Fortner after receiving the August 2023 LOR. Moreover, respondent's fellow teachers and Probation staff praise her teaching acumen and ability to connect with the students. Respondent's willingness to adapt and improve and her praiseworthy ability to reach students mitigate the impact of her misconduct.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF RESPONDENT'S MOTIVES

69. There is no evidence that respondent intended to misplace the hole punch or the screwdriver. Accordingly, her motives here are neutral. Additionally, she immediately informed the classroom JCOs when she learned the items were missing. Her willingness to make a negative self-report is praiseworthy. Respondent's motives in bringing the screwdriver to the classroom, to help address the rodent problem on the premises, were also praiseworthy.

70. Respondent was disrespectful toward Mr. Rebozzi on August 11 and 12, 2021. There is no evidence that she intended to disrespect him. Rather, the evidence suggests respondent got carried away in voicing her concerns and became loud and argumentative. Particularly in light of her openness to Mr. Rebozzi's feedback and her subsequent improvement, respondent's motives here were more praiseworthy than blameworthy.

71. Respondent was also disrespectful toward Ms. Fortner when she made a comment to a colleague that Ms. Fortner "is an idiot." Respondent explained her understandable frustration at the time with Ms. Fortner's proposed changes to the CTE program. However, the description "idiot" is inflammatory and meant to be insulting. Thus, respondent's motives here were more blameworthy than praiseworthy. Nevertheless, when all of her proved conduct is considered, respondent's motives overall lean toward praiseworthy.

LIKELIHOOD OF RECURRENCE

72. Respondent may misplace other items in the future. However, the likelihood of recurrence does not necessarily reflect negatively on respondent. Items are occasionally misplaced. Juvenile Hall is searched once or twice a month to locate missing items. The passage of over two years between the two incidents with the misplaced items also suggest a minimal likelihood of recurrence.

73. Respondent's behavior improved after her one-on-one conversations with Mr. Rebozzi in August 2021. There is no evidence respondent made any subsequent comments about Ms. Fortner after she referred to her as "an idiot." The likelihood of recurrence is minimal, particularly in light of respondent's willingness to improve.

POSSIBLE CHILLING EFFECT ON CONSTITUTIONAL RIGHTS

74. There is no evidence discipline would adversely impact or chill respondent or any other teacher in the free exercise of their constitutional rights.

PUBLICITY OR NOTORIETY OF MISCONDUCT

75. There is no evidence respondent's conduct was publicized or notorious.

LEGAL CONCLUSIONS

1. YCOE has the burden of proving the allegations in the Statement of Charges by a preponderance of evidence. (*Lopez v. Imperial County Sheriff's Office* (2008) 165 Cal.App.4th 1, 4 ["In disciplinary administrative proceedings, the burden of proving the charges rests upon the party making the charges"]; *Gardener v. Com. on Professional Competence* (1985) 164 Cal.App.3d 1035, 1040 [the standard of proof in an administrative proceeding for the dismissal of a teacher is a preponderance of the evidence].) This evidentiary standard requires the party with the burden of proof to produce evidence of such weight that, when balanced against evidence to the contrary, is more persuasive. (*People ex rel. Brown v. Tri-Union Seafoods, LLC* (2009) 171 Cal.App.4th 1549, 1567.) In other words, YCOE must prove it is more likely than not that respondent engaged in the conduct alleged. (*Lillian F. v. Super. Ct.* (1984) 160 Cal.App.3d 314, 320.)

2. Education Code section 44932, subdivision (a), authorizes dismissal of a permanent certificated employee for: immoral conduct, including but not limited to egregious conduct; dishonesty; evident unfitness for service; and a persistent violation of or refusal to obey school laws, the State Board of Education's regulations, or the regulations of the governing board of a school district.

3. Education Code section 44934, subdivision (c), provides:

Any written statement of charges shall specify instances of behavior and the acts or omissions constituting the charge so that the employee will be able to prepare his or her defense. It shall, where applicable, state the statutes and

rules that the employee is alleged to have violated, and it shall also set forth the facts relevant to each charge.

Causes for Dismissal

IMMORAL CONDUCT, INCLUDING BUT NOT LIMITED TO EGREGIOUS CONDUCT

4. A teacher may be dismissed for engaging in immoral conduct, including but not limited to egregious conduct. (Ed. Code, § 44932, subd. (a)(1).) Egregious conduct is defined exclusively as immoral conduct that is the basis for an offense enumerated in Education Code section 44010 or 44011 or in Penal Code sections 11165.2 through 11165.6. (*Ibid.*)

5. The term “immoral” has been defined generally as “that which is hostile to the welfare of the general public and contrary to good morals. . . . [It] includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.” (*Bd. of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

6. The SOC fails to identify which specific allegations constitute immoral conduct or which specific allegations constitute egregious conduct. The SOC also fails to identify which of the enumerated offenses under egregious conduct respondent is alleged to have committed. For these reasons, the SOC’s allegation with respect to this cause for dismissal does not comply with the pleading requirements of Education Code section 44934, subdivision (c). Consequently, complainant failed to establish cause for dismissal on the basis of immoral conduct or egregious conduct.

DISHONESTY

7. A teacher may be dismissed for dishonesty. (Ed. Code, § 44932, subd. (a)(4).) When all the evidence is considered, complainant failed to prove respondent was dishonest: (1) about finding her missing hole punch; (2) about the date she located the screwdriver; or (3) by allegedly hiding the sexually explicit writings. Therefore, cause does not exist to dismiss respondent on the basis of dishonesty.

EVIDENT UNFITNESS FOR SERVICE

8. A teacher may be dismissed for evident unfitness for service. (Ed. Code, § 44932, subd. (a)(6).) "Evident unfitness for service" means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. (*Woodland Joint Unified School Dist. v. Com. on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

9. The SOC fails to identify which specific allegations demonstrate temperamental defects or a fixed character trait that impairs respondent's fitness to teach. For this reason, the SOC's allegation with respect to this cause for dismissal does not comply with the pleading requirements of Education Code section 44934, subdivision (c). Consequently, complainant failed to establish cause for dismissal on the basis of evident unfitness for service.

PERSISTENT VIOLATION OF OR REFUSAL TO OBEY LAWS OR REGULATIONS

10. A teacher may be dismissed for persistent violation of, or a persistent refusal to obey: (1) the State's school laws; (2) the State Board of Education's regulations; or (3) the regulations of the governing board of a school district. (Ed. Code, § 44932, subd. (a)(8).)

11. A charge of persistent violation of or refusal to obey requires a showing of insubordination. (*Midway School Dist. of Kern County v. Griffeath* (1946) 29 Cal.2d 13, 18-19.) Furthermore, "persistence" requires a showing of "continuing or constant" behavior. (*Governing Bd. of the Oakdale Union School Dist. v. Seaman* (1972) 27 Cal.App.3d 77, 82.) "Persistence, in the sense intended, is referable to past conduct. The Legislature undoubtedly intended that opportunity for correction be available and refrained from providing for dismissal for a single violation of regulations, or until repeated violations could be considered persistent." (*Midway School Dist. of Kern County v. Griffeath, supra*, 29 Cal.2d at p. 18.)

12. The SOC alleges that respondent engaged in "repeated dangerous behavior," referring to misplacing the hole punch in 2021 and misplacing the screwdriver in 2024. However, the gap of over two years between the two incidents does not demonstrate a pattern or establish repetition. Twice misplacing items also does not establish persistence. (See *Midway School Dist. of Kern County v. Griffeath, supra*, 29 Cal.2d at p. 18; *Fresno City High School Dist. v. De Caristo* (1939) 33 Cal.App.2d 666.) Consequently, cause does not exist to dismiss respondent on the basis of misplacing the hole punch and screwdriver.

13. The SOC also alleges that respondent engaged in similarly disrespectful behavior toward two principals, Mr. Rebozzi and Ms. Fortner. However, respondent

improved her conduct after her one-on-one conversations with Mr. Rebozzi. There is no evidence she made other inflammatory comments about Ms. Fortner to another colleague. Given the respective contexts, respondent's conduct here is not repeated and does not establish persistence. (See *Midway School Dist. of Kern County v. Griffeath, supra*, 29 Cal.2d at p. 18.) Consequently, cause does not exist to dismiss respondent on the basis of a persistent violation of or a persistent refusal to obey school laws or regulations.

Appropriate Discipline

14. Complainant proved that respondent: (1) misplaced a hole punch, a potentially dangerous item, and immediately reported it to the classroom JCO; (2) engaged in disrespectful behavior toward Mr. Rebozzi on August 11 and 12, 2021; (3) engaged in disrespectful behavior toward Ms. Fortner by making the comment that Ms. Fortner "is an idiot"; and (4) misplaced a screwdriver, a potentially dangerous item, immediately reported it missing to the classroom JCO, and immediately reported it as found once she located it.

15. Based on an analysis of the proved conduct against the *Morrison* factors above, the evidence does not support a finding that respondent is unfit to teach. To the contrary, particularly notable is her openness to criticism and willingness to learn and improve. Complainant did not prove that respondent has temperamental defects or a fixed character trait that impairs her fitness to teach. When all the evidence is considered, complainant failed to establish that respondent's proved conduct warrants dismissal as alleged in the Statement of Charges. Therefore, the Statement of Charges should be dismissed.

ORDER

The Statement of Charges against Angela Bracco, a Permanent Certificated Employee, is DISMISSED.

DATE: 11/14/2025


[Kathryn L. Birch \(Nov 14, 2025 14:38:10 PST\)](#)
KATHRYN BIRCH

Commissioner

Commission on Professional Competence

DATE: 11/14/2025


[Carrie Jackson \(Nov 14, 2025 13:05:07 PST\)](#)
CARRIE JACKSON, Ed.D.

Commissioner

Commission on Professional Competence

DATE: 11/14/2025


PATRICE DE GUZMAN HUBER

Administrative Law Judge, Chair

Commission on Professional Competence